



Notification Waiver Determination

Oakley Capital - XTEL

Acquisition	Oakley Eloa Luxco S.à r.l., a special purpose vehicle indirectly controlled by one or more affiliates of Oakley Capital Manager S.a r.l, (Oakley Manager) a Luxembourg governed entity advised by Oakley Capital Limited (OCL) as investment advisor to Oakley Capital VI Aggregator SCSp and Oakley Capital VI Co-Investment (A) SCSp (together, Oakley Fund VI) (together, Oakley Capital), applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in Bond Lux Co-Invest S.à r.l (XTEL), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	30 June 2026

Parties to the Acquisition	Oakley Capital is a European growth-focused investment firm which focuses on investing across the core sectors of digital consumer, technology, business services and education. XTEL is headquartered in Leuven, Belgium, and is a global enterprise software provider delivering a cloud-native, AI-first revenue management platform for the consumer-packaged goods sector. Its solutions include trade promotion management (TPM), trade promotion optimisation (TPO), revenue growth management (RGM), AI data management, assortment, and retail execution.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, there is no horizontal or vertical overlap between Oakley Capital (and its connected entities) and XTEL in the supply of software solutions for the consumer packaged goods sector in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to

	arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**